

6-2024

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Kendall Kerew

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Recommended Citation

Kerew, Kendall (2024) "The Rule of Law, The Lawyer's Role as a Public Citizen, and Professional Identity: How Fostering the Development of Professional Identity Can Help Law Schools Address the Crisis Facing American Democracy," *Mercer Law Review*. Vol. 75: No. 5, Article 6.

Available at: https://digitalcommons.law.mercer.edu/jour_mlr/vol75/iss5/6

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The Rule of Law, The Lawyer's Role as a Public Citizen, and Professional Identity: How Fostering the Development of Professional Identity Can Help Law Schools Address the Crisis Facing American Democracy

Kendall Kerew*

“Democracies unravel when the rule of law unravels . . . [lawyers] are an essential part of the future of this country.”¹

I. INTRODUCTION

American democracy is in crisis. The January 6, 2021, attack on the U.S. Capitol must serve as a renewed wake-up call for the legal

*Associate Clinical Professor and Director, Externship Program, Georgia State University College of Law; Fellow of the Holloran Center for Ethical Leadership, University of St. Thomas School of Law. I would like to thank Professors Pat Longan, Daisy Floyd, and Tim Floyd, and the Mercer Law Review for inviting me to speak at the Symposium. I would also like to thank Professors Eduardo Capulong and Kelly Terry for serving as article commentators at the Symposium and for providing thoughtful comments and insights that shaped the ideas in this article; Professors Tim Floyd and Jerry Organ, and Hulett H. “Bucky” Askew, who provided helpful feedback on this article; and Kelsey O’Neill and Gracyn Heisterberg for their invaluable research assistance.

1. Sherilynn Ifill, *Sherilynn Ifill’s Remarks on the Future of Our Democracy from the 2022 ABA Thurgood Marshall Award Ceremony*, ABA HUMAN RIGHTS (July 26, 2023), https://www.americanbar.org/groups/crsj/publications/human_rights_magazine_home/the-end-of-the-rule-of-law/sherrilyn-ifills-remarks-2022-tma-ceremony/ [https://perma.cc/89J3-XHUF].

profession.² We can no longer keep our heads down, focused solely or even primarily on serving our clients, without being mindful that what we do every day as lawyers starts and ends with our duty to uphold the rule of law and our system of justice. We must acknowledge that lawyers are the ones who have put democracy at risk. Lawyers are the ones who, in their role as zealous advocates, attempted to overturn the 2020 election without a legal basis for doing so. In California, former Professor John Eastman³ is facing disbarment for multiple counts of seeking to mislead the court and moral turpitude (misrepresentation), and for one count of “fail[ure] to support the . . . law[] of the United States.”⁴ In her disciplinary decision, Judge Yvette D. Roland stated, “[v]igorous advocacy does not absolve Eastman of his professional responsibilities around honesty and upholding the rule of law.”⁵

2. In his Symposium Keynote Address, Professor Tim Floyd discussed Watergate as a wake-up call to the profession that prompted changes to law schools and the legal profession. “In 1973, following the indictment of some 21 lawyers in the Watergate scandal, the American Bar Association responded to the public outcry by mandating ethics courses in law schools, eventually revamping its Model Rules of Professional Conduct in 1983.” *Professional Ethics Compliance: From Watergate to Today*, AM. BAR ASS’N (July 10, 2015), https://www.americanbar.org/groups/diversity/women/publications/perspectives/2015/summer/professional_ethics_compliance_watergate_today/ [https://perma.cc/B9H2-E2AC]; Mark Hansen, 1965–1974: *Watergate and the rise of legal ethics*, AM. BAR ASS’N MAGAZINE (January 1, 2015), https://www.abajournal.com/magazine/article/1965_1974_watergate_and_the_rise_of_legal_ethics [https://perma.cc/7TF5-UPDH].

3. John Eastman is a former professor and dean of Chapman University Law School. In addition to Eastman, several other Trump lawyers have or could face disciplinary charges for their role in representing Trump regarding the 2020 election. Rudy Giuliani has been suspended from practice, Jefferey Clark is facing disciplinary action, and Jenna Ellis, Sidney Powell, and Kenneth Chesebro have pleaded guilty to criminal charges. Katelyn Polantz & Tierney Sneed, *Lawyers for Trump after 2020 election face professional reckonings*, CNN (Mar. 27, 2024, 12:08 PM), <https://www.cnn.com/2024/03/27/politics/jeffrey-clark-john-eastman-trump-lawyers/index.html> [https://perma.cc/2VWM-MAJF].

4. In the Matter of John Charles Eastman, No. SBC-23-O-30029-YDR, at 1 (State Bar Ct. of Cal. Mar. 28, 2024), <https://static01.nyt.com/newsgraphics/documenttools/fd730cf01ca6812b/e3258bd4-full.pdf> [https://perma.cc/C7VR-R59W].

5. *Id.* at 124.

[T]his disciplinary proceeding boils down to an analysis of whether or not Eastman, in his role as the attorney for then-President Donald Trump . . . and his re-election campaign, acted dishonestly in his comments and advice given regarding the issue of whether then-Vice President Mike Pence . . . had authority to unilaterally reject certain states’ slate of electors and/or delay or recess the electoral count during the Joint Session of Congress on January 6, 2021, and the manner in which he pursued legal action aimed at obstructing the lawful electoral process.

Id. at 4–5.

Protecting democracy and the rule of law is non-negotiable.⁶ We, as lawyers and legal educators, must provide our students with an education built upon the role of the lawyer as a “public citizen having special responsibility for the quality of justice” defined in the Preamble to the American Bar Association’s Model Rules of Professional Conduct.⁷ Because lawyers are “fundamental to the flourishing of American democracy,”⁸ the profession is critical to its survival. Accordingly, it is incumbent on the profession, legal educators, and individual lawyers to take this opportunity to protect democracy and the rule of law into the future by embracing the role of public citizen.

By training the lawyers of tomorrow, American law schools are uniquely positioned to elevate the role of the lawyer as a public citizen charged with upholding the rule of law and remedying injustice. Accordingly, this article will explore the intersection of the Preamble’s definition of lawyer “as public citizen” with law student professional identity formation and training on cross-cultural competence, racism, and bias required by ABA Standards 303(b)(3)⁹ and 303(c).¹⁰ This intersection provides a crucial means to help students discern their role as future lawyers and empower students in their duties to protect the rule of law as the foundation of democracy, provide access to justice, and make change where the law has created injustice.

II. THE CRISIS OF AMERICAN DEMOCRACY AND CALLS TO ACTION IN RESPONSE

A. *The Changing Nature of How Democracy Fails*

The law itself and the misuse of the legal system can threaten democracy and pave the way for autocracy. Today, liberal, constitutional democracies like the U.S. are collapsing by legal death, not by coup.¹¹ Professor Kim Lane Scheppele calls this phenomenon “autocratic legalism” and describes the process by which, after election,

6. Professor Eduardo Capulong made this point in his role as a discussant of this article at the Symposium.

7. MODEL RULES OF PRO. CONDUCT PREAMBLE, para. 1 (AM. BAR ASS’N 1983).

8. WILLIAM S. SULLIVAN ET AL., SUMMARY OF EDUCATING LAWYERS: PREPARATION FOR THE PROFESSION OF LAW 3 (2007), http://archive.carnegiefoundation.org/publications/pdfs/elibrary/elibrary_pdf_632.pdf [<https://perma.cc/4BWF-LLJN>].

9. STANDARDS AND RULES OF PROC. FOR APPROVAL OF L. SCH. 303(b)(3) (AM. BAR ASS’N 2023–2024), https://www.americanbar.org/groups/legal_education/resources/standards/ [<https://perma.cc/98B3-ESLE>].

10. *Id.* at 303(c)(3).

11. This idea was contributed by Eduardo Capulong in his comments on this paper during the Mercer Law Review Symposium.

[autocrats] use their democratic mandates to launch legal reforms that remove the checks on executive power, limit the challenges to their rule, and undermine the crucial accountability institutions of a democratic state. Because these autocrats push their illiberal measures with electoral backing and use constitutional or legal methods to accomplish their aims, they can hide their autocratic designs in the pluralism of legitimate legal forms.¹²

Scheppele states that this first happens through legal reforms focused on giving the executive more power by limiting or eliminating the constitutional check on the executive's power.¹³ This is often something that is not noticed until too late because the legal reforms use "the rhetoric of democracy and the methods of the law[.]"¹⁴ We need to pay attention to the changes being made to our system of laws, even if the changes are within the bounds of the law, because the law can be used to undermine a constitutional democracy.¹⁵ As citizens, we are given three options to address this type of threat to our democracy: collude, do nothing, or do something.¹⁶ As lawyers and public citizens, we must do something to ensure continued democracy. We are responsible for striving for equal justice under the law for all people.

12. Kim Lane Scheppele, *Autocratic Legalism*, 85 UNIV. OF CHICAGO L. REV. 545, 547–48 (2018). The way an autocratic legalist dismantles a liberal democracy is through an attack on liberalism while using constitutionalism. *Id.* at 581; see Sung Hui Kim, *Reimagining the Lawyer's Duty to Uphold the Rule of Law*, 2023 U. ILL. L. REV. 781, 794 (2023) ("In Hungary, Poland, Ecuador, Venezuela, Brazil, Philippines, and Turkey, among others, charismatic strong men have been swept into power by popular majorities disillusioned with the status quo and the characteristic dysfunctions of democracy—partisanship, gridlock, and bureaucracy. Once in power, these leaders, assisted by a phalanx of lawyers, 'use their democratic mandates to launch legal reforms that remove the checks on executive power, limit the challenges to their rule, and undermine the crucial accountability institutions of a democratic state.'" (quoting Scheppele, *supra*, at 547–48)).

13. Scheppele, *supra* note 12, at 549. Professor Scheppele uses Hungary and Prime Minister Viktor Orbán as her "archetypal case." *Id.*

14. *Id.* at 571.

15. *Id.* at 583; see Spencer S. Hsu, *Republican-appointed judges raise alarm over Trump attacks on law*, WASH. POST (Mar. 29, 2024, 3:12 PM), <https://www.washingtonpost.com/dc-md-vi/2024/03/29/trump-judge-attacks-violence/> [<https://perma.cc/Y7MA-KKHL>] (expressing concern about our democracy, Republican-appointed senior United States district judge of the United States District Court for the District of Columbia Reggie B. Walton stated that "[t]he rule of law can only be maintained if we have independent judicial officers who are able to do their job and ensure that the laws are in fact enforced and that the laws are applied equally to everybody who appears in our courthouse [I]f we don't have a viable court system that's able to function efficiently, then we have tyranny.").

16. Professor Eduardo Capulong made this point at the Symposium and referenced the title of Howard Zinn's autobiography, "You Can't Be Neutral on a Moving Train[.]" See HOWARD ZINN, YOU CAN'T BE NEUTRAL ON A MOVING TRAIN (Beacon Press 1994).

B. The ABA

In response to the crisis facing democracy in this country, 2023–2024 American Bar Association President Mary L. Smith created the ABA Task Force on American Democracy.¹⁷ The mission of this nonpartisan Task Force is to:

(i) inspire and mobilize America’s duty-bound legal profession to actively support and defend American democracy, the Constitution and the rule of law; (ii) ensure that lawyers are educated and held accountable to their professional obligations to support and defend our democracy, the Constitution, and the rule of law; and (iii) [l]everage the legal profession to educate the public on the reasons for, and the importance of, democracy and the rule of law.¹⁸

In February 2024, the Task Force conducted a listening session in Georgia. As part of that session, it presented eye-opening statistics reflecting the state of American democracy, which included the following:

Only 28% of U.S. Adults Are Satisfied With the Way Democracy Is Working in the Country[;]¹⁹

Approximately 38% of Americans Support Authoritarianism as a Response to the Direction of Democracy in the United States[;]²⁰

17. Mary L. Smith, *Working to Ensure an Enduring American Democracy*, BUS. L. TODAY (Dec. 12, 2023), https://www.americanbar.org/groups/business_law/resources/business-law-today/2023-december/working-to-ensure-enduring-american-democracy/ [<https://perma.cc/7LZN-Z49Q>] (“Our current situation and the unique role lawyers play in a democracy is what led me to form the American Bar Association (ABA) Task Force for American Democracy . . .”).

18. *Mission*, ABA TASK FORCE FOR AM. DEMOCRACY, https://www.americanbar.org/groups/leadership/office_of_the_president/american-democracy/ [<https://perma.cc/8FDS-JTLT>] (last visited Mar. 24, 2024).

19. *Taking the Next Step: Ensuring Trusted Elections and Civics for Georgians Program Materials*, AM. BAR ASS’N TASK FORCE FOR AM. DEMOCRACY (Feb. 13, 2024), https://www.americanbar.org/content/dam/aba/administrative/office_president/democracy-listening-tours/taking-the-next-step-program-materials-georgia.pdf [<https://perma.cc/LW8H-ZPK7>]; Jeffrey M. Jones, *Record Low in U.S. Satisfied With Way Democracy Is Working*, GALLUP (Jan. 5, 2024), <https://news.gallup.com/poll/548120/record-low-satisfied-democracy-working.aspx> [<https://perma.cc/2X58-NX39>].

20. *Taking the Next Step*, *supra* note 19; *Threats to American Democracy Ahead of an Unprecedented Presidential Election*, PUB. RELIGION RSCH. INST. (Oct. 25, 2023), <https://www.prii.org/wp-content/uploads/2023/10/PRRI-Oct-2023-AVS.pdf> [<https://perma.cc/GEE3-3CJ9>].

Less Than One-Third of Millennials Consider It Essential to live in a Democracy[;]²¹

51% of Americans Say Democracy Is Not Working[;]²²

62% of American Adults Say Democracy in the U.S. Could Be at Risk[;]²³

A Pew Research Center Report Says 63% Have Little or No Confidence At All in the Future of the U.S. Political System[;]²⁴ [and]

Nearly a Quarter of Americans Say They Are Prepared to Resort to Violence If Their Desired Candidate Loses[.]²⁵

C. *The American Association of Law Schools*

In an effort to focus on what law schools can do to counter the threat to American democracy, 2023 American Association of Law Schools (AALS) President Mark Alexander chose “Defending Democracy” as the theme of his presidential term.²⁶ He explained the reasoning behind this theme as follows:

We live in a great country. But there are real threats to it. Three-quarters of all voters—left, right, center—believe our democracy is in peril . . . Law schools can play a critical role in the future of our country and our democracy. The legal profession has never had a higher profile and greater exposure than over the last few years. Lawyers are everywhere in places of prominence, power, and policy. Lawyers have shaped and will continue to shape our democracy.²⁷

21. *Taking the Next Step*, *supra* note 19; *Reinventing American Democracy for the 21st Century*, AM. ACAD. OF ARTS & SCI. (Summer 2020), <https://www.amacad.org/news/reinventing-american-democracy-21st-century> [<https://perma.cc/627F-3NLM>].

22. *Taking the Next Step*, *supra* note 19; *Widespread feeling that the 2024 presidential election carries serious stakes for the country*, AP-NORC CTR. FOR PUB. AFFAIRS RSCH. (Dec. 15, 2023), <https://apnorc.org/projects/widespread-feeling-that-the-2024-presidential-election-carries-serious-stakes-for-the-country/> [<https://perma.cc/BR8S-FMA2>].

23. *Taking the Next Step*, *supra* note 19; *Widespread feeling that the 2024 presidential election carries serious stakes for the country*, *supra* note 22.

24. *Taking the Next Step*, *supra* note 19.

25. *Id.*; PUB. RELIGION RSCH. INST., *supra* note 20.

26. Mark Alexander, *Defending Democracy*, ASS’N OF AM. L. SCH. (Summer 2023), <https://www.aals.org/about/publications/newsletters/aals-news-summer-2023/2024-aals-annual-meeting/> [<https://perma.cc/KW8G-4CCY>].

27. *Id.*

Furthering this idea, 2024 AALS President Melanie Wilson chose as her theme, “Courage in Action.”²⁸ As part of her explanation for the theme, she stated:

Today, as much as ever before, we need to infuse courage into the legal academy and in the lawyers and the leaders we are preparing and graduating. We need the courage to teach our students how to act civilly, even when they vehemently disagree with one another, and we need to teach students how to find common ground with those they oppose. We also must continue to graduate students who find the courage to defend democracy when self-interest or apathy would favor inaction.²⁹

D. Law School Deans

In response to the events of January 6, 2021, 171 law school deans signed a joint statement addressing the events that transpired that day and the role of lawyers in those events:

We are deans of a diverse range of law schools across the country. We do not use our positions to advance our individual views. *But we do have an obligation to support the rule of law and preserve the integrity of the legal profession.* On rare occasions, despite our differing situations and views, that obligation requires us to speak as one to defend the fundamental commitments of our profession. This is such a moment.

The violent attack on the Capitol was an assault on our democracy and the rule of law. The effort to disrupt the certification of a free and fair election was a betrayal of the core values that undergird our Constitution. Lives were lost, the seat of our democracy was desecrated, and our country was shamed.

Many lawyers and judges worked honestly and in good faith, often in the face of considerable political pressure, to ensure the 2020 election was free and fair. However, we recognize with dismay and sorrow that some lawyers challenged the outcome of the election with claims that they did not support with facts or evidence. This betrayed the values of our profession. *Our profession demands that when lawyers pursue legal action, they must bring claims in good faith, grounded in facts and evidence, and demonstrate respect for the legal system. Only then can lawyers fulfill their responsibilities as lawyers and public citizens*

28. Melanie Wilson, *2024 Presidential Address—Courage in Action*, ASS’N OF AM. LAW SCH. (Winter 2024), <https://www.aals.org/about/publications/newsletters/2024-winter/presidential-address/> [<https://perma.cc/L9JE-9SJJ>].

29. *Id.*

to promote public confidence in the rule of law and the justice system—duties that extend to all professional activities, whether lawyers are representing a client or not. The rule of law is as much a touchstone of our profession as it is of our Constitution.

As law deans, our mission is to train the next generation of leaders to uphold the core values of our profession and sustain the rule of law. This should be a moment of reflection for legal educators and members of the legal profession. A sustained effort will be necessary to repair and preserve our precious democratic institutions. As legal educators and lawyers ourselves, *we must redouble our efforts to restore faith in the rule of law and the ideals of the legal profession.* We have enormous faith in the law's enduring values and in our students, who will soon lead this profession. We call upon all members of the legal profession to join us in the vital work ahead.³⁰

In addition, fourteen law school deans came together to write the book, *Beyond Imagination?: The January 6 Insurrection*,³¹ which examines what led to the insurrection and what the profession needs to do moving forward. The introduction explains the impetus for writing the book:

The rule of law is the foundation of America's constitutional democracy. It is the principle by which all individuals and institutions are accountable to laws that are enacted publicly and lawfully, enforced equally, and subject to independent judicial review. While our nation has always been a work in progress, the rule of law serves as the guide to achieve the promise of equal justice under law.

. . . .

Upon becoming a member of the bar, every new lawyer swears an oath. These oaths are unique to each jurisdiction, but they all require those taking them to support the Constitution of the United States. They mean something about who we are as lawyers and about our obligations to society. As deans, we are proud to be lawyers, and to train lawyers, in part because of the oaths we have taken and the responsibilities that come with those oaths. As lawyers and legal educators, the ongoing legitimacy of our nation's republic requires us all to engage. As we train the next generation of lawyer-leaders, many of whom we ask to take these same oaths when they start law school,

30. Mark C. Alexander et al., *Law Deans Joint Statement on the 2020 Election and Events at the Capitol*, LOYOLA UNIV. CHICAGO (Jan. 12, 2021) (emphasis added), https://www.luc.edu/media/lucedu/law/pdfs/2020-election-law_deans_joint_statement.pdf [<https://perma.cc/B5YK-8AKU>].

31. MARK C. ALEXANDER ET. AL., *BEYOND IMAGINATION?: THE JANUARY 6 INSURRECTION* (West Acad. Publ'g 2022).

we must take stock and double down on the rule of law. This work will not be easy, and we decided to write a book, as part of the effort.³²

E. The World Justice Project

The World Justice Project, first established by ABA President William Neukom in 2007, is an “independent, multidisciplinary organization working to create knowledge, build awareness, and stimulate action to advance the rule of law worldwide.”³³ “Based on the belief that the rule of law is a prerequisite for building societies that offer opportunity and equity to all their citizens,” the World Justice Project has created “an index that will measure how nations around the world are—or are not—following the rule of law.”³⁴ The Rule of Law Index measures people’s experiences and perceptions of the rule of law in 142 countries and jurisdictions and ranks the countries and jurisdictions in terms of adherence to the rule of law with the country ranking first to be the one that most adheres to the rule of law and the country ranking last to be the one that adheres the least to the rule of law.³⁵

In 2023, the United States ranked just twenty-six.³⁶ Denmark ranked first.³⁷ Venezuela ranked last at 142.³⁸ In addition, since the index began in 2016, the United States has scored lower on its ranking related to constraints on government powers, which measures how well the system of checks and balances is performing, and lower in fundamental rights and fair and effective criminal justice.³⁹ Importantly, the United States has particularly low scores in the subcategories reflecting equality before

32. *Id.* at v, viii.

33. *About Us*, WORLD JUST. PROJECT (last visited Mar. 31, 2024), https://worldjusticeproject.org/about-us?page_manager_page_variant_weight=7&overridden_route_name=entity.node.canonical&base_route_name=entity.node.canonical&page_manager_page=node&page_manager_page_variant=node-panels_variant-1 [https://perma.cc/M5K4-LAWM] (last visited Apr. 3, 2024); *see generally Rule of Law Index*, WORLD JUST. PROJECT (2023), https://worldjusticeproject.org/rule-of-law-index/?gad_source=1&gclid=Cj0KCQjwwYSwBhDcARIsAOyL0fhCeWxLJyhS_aVs7tpxyqvqq4We-vX3saovz7DHzsxkUOs3gRkOWpEaAtIoEALw_wcB [https://perma.cc/LV44-G5MW]; *U.S. Rule of Law Toolkit*, WORLD JUST. PROJECT (2023), <http://eepurl.com/ivnyuc> [https://perma.cc/WMV5-JDKL].

34. *What is the rule of law?*, AM. BAR ASS’N, https://www.americanbar.org/advocacy/rule_of_law/what-is-the-rule-of-law/ [https://perma.cc/NCV8-HQB9] (last visited Apr. 3, 2024).

35. *Rule of Law Index*, *supra* note 33, at 8.

36. *Id.* at 22; *see* Kim, *supra* note 12, at 788 (“In 2021, the International Institute for Democracy and Electoral Assistance identified the United States as a backsliding democracy for the first time since 1800.”).

37. *Rule of Law Index*, *supra* note 33, at 22; Kim, *supra* note 12, at 788.

38. *Rule of Law Index*, *supra* note 33, at 23.

39. *U.S. Rule of Law Toolkit*, *supra* note 33.

the law.⁴⁰ The World Justice Project reports that the United States ranked 115th on accessibility and affordability of civil justice, 124th in absence of discrimination in civil justice, and 109th on impartiality of the criminal justice system.⁴¹ In response to this ranking, the World Justice Project calls upon lawyers' "special role in strengthening justice and the rule of law, one that is rooted in our professional responsibility and our expertise as members of the legal profession."⁴² Citing the ABA Model Rules of Professional Conduct, the World Justice Project asserts that "a lawyer should 'further the public's understanding of and confidence in the rule of law and the justice system' . . . [b]ecause public trust in legal institutions is so important in a constitutional democracy."⁴³

Faced with these stark facts and calls to action, we must focus on how law schools can empower students to uphold the rule of law and exercise courage in their roles as public citizens. Through the addition of ABA Standards 303(b)(3) and 303(c), law schools can focus on the role our students as future lawyers can play.

III. ABA STANDARDS ON PROFESSIONAL IDENTITY AND TRAINING REGARDING CROSS-CULTURAL COMPETENCE, RACISM, AND BIAS

The recent addition of ABA Standards 303(b)(3) and 303(c) provides an opportunity for law schools to address the democracy crisis through the required law school curriculum. These requirements can help law schools focus on the role of the lawyer and the special duties a lawyer has to address injustice in the legal system. ABA Standard 303(b)(3) requires that "[a] law school shall provide substantial opportunities to students for . . . (3) the development of a professional identity."⁴⁴ In addition, ABA Standard 303(c) requires that:

A law school shall provide education to law students on bias, cross-cultural competency, and racism: (1) at the start of the program of legal education, and (2) at least once again before graduation. For students engaged in law clinics or field placements, the second educational occasion will take place before, concurrently with, or as part of their enrollment in clinical or field placement courses.⁴⁵

Interpretation 303-5 defines "professional identity" as:

40. *Id.*

41. *Id.*

42. *Id.*

43. *Id.* (quoting *Preamble*, *supra* note 7, at para. 6).

44. STANDARDS AND RULES OF PROC. FOR APPROVAL OF L. SCH., *supra* note 9, at 303(b)(3).

45. *Id.* at 303(c).

[W]hat it means to be a lawyer and the special obligations lawyers have to their clients and society. The development of professional identity should involve an intentional exploration of the values, guiding principles, and well-being practices considered foundational to successful legal practice. Because developing a professional identity requires reflection and growth over time, students should have frequent opportunities for such development during each year of law school and in a variety of courses and co-curricular and professional development activities.⁴⁶

Importantly, through Interpretation 303-6, the ABA makes clear that “the obligation of lawyers to promote a justice system that provides equal access and eliminates bias, discrimination, and racism in the law should be among the values and responsibilities of the legal profession to which students are introduced.”⁴⁷

IV. THE LAWYER’S ROLE AS A PUBLIC CITIZEN

If law schools are going to be effective in addressing the democracy crisis, they must be intentional about how they define the role of the lawyer as a public citizen and what it means to uphold the rule of law. Law schools must help law students understand that the role of public citizen requires them to have moral courage, to remedy injustice, and to work toward a system that provides equal access to all it serves. Moreover, lawyers cannot carry out their other roles in serving clients and the profession without consideration of the rule of law.

A. *The Model Rules of Professional Conduct*

The Preamble of the ABA Model Rules of Professional Conduct defines a lawyer as “a representative of clients, an officer of the legal system and a public citizen having special responsibility for the quality of justice.”⁴⁸ These three roles that define a “lawyer” are “foundational norms and values that law students and lawyers must understand, internalize, and demonstrate [as part of their professional identity.]”⁴⁹

46. *Id.* at Interpretation 303-5.

47. *Id.* at Interpretation 303-6.

48. *Preamble*, *supra* note 7.

49. *What Is a Law Student’s Professional Identity and What Is Professional Identity Formation?—A Short Introduction*, HOLLORAN CTR. (Sept. 2022), https://law.stthomas.edu/_media-library/documents/holloran-center/professional-identity-definition1.pdf [https://perma.cc/V34T-VSLB].

1. Defining The Role of Public Citizen

Law students should begin law school with an understanding that lawyers must play a vital role in the preservation of democracy and uphold the rule of law.⁵⁰ This is why when introducing law students to the Preamble's definition of "lawyer," law schools should focus on the role of lawyer as public citizen as a foundational role upon which the lawyer's other roles are dependent.⁵¹ After all, lawyers are part of a profession. By definition, "professions are occupations with special power and prestige. Society grants these rewards because professions have special competence in esoteric bodies of knowledge linked to central needs and values of the social system, and because professions are devoted to the service of the public, above and beyond material incentives."⁵² This is not to suggest that the role of public citizen should supplant the role of serving clients, but it should be a consideration in the representation of clients, not a role relegated to the realm of *pro bono* service and public interest lawyers working in the government and non-profit sectors.

The Preamble charges lawyers as "public citizen[s]" to "seek improvement of the law, access to the legal system, the administration of justice and the quality of service rendered by the legal profession" while also "further[ing] the public's understanding of and confidence in the rule of law and the justice system because legal institutions in a constitutional democracy depend on popular participation and support to maintain their authority."⁵³ Lawyers should be "mindful of deficiencies in the administration of justice and . . . ensure equal access to our system of justice for all those who because of economic or social barriers cannot afford or secure adequate legal counsel."⁵⁴

50. *Preamble*, *supra* note 7, at para. 6.

51. *Id.* As described below, the Preamble and Rules of Professional Conduct misplace the role of "zealous advocate" as the "core principle" or "baseline role." Matthew E. Meany, 'Lawyer as Public Citizen'—A Futile Attempt to Close Pandora's Box, 35 CAMPBELL L. REV. 119, 130 (2009) ("As a limitation on the baseline concept, 'public citizen' is structurally a much less fundamental component of the model lawyer under the Rules[]"; *see generally*, Eli Wald, *The Access and Justice Imperatives of the Rules of Professional Conduct*, 35 GEO. J. LEGAL ETHICS 375, 427 (advocating for a change in the Model Rules of Professional Conduct because "the Rules can no longer credibly purport to serve the public, the public interest, and justice by primarily focusing on the attorney-client relationship and the representation of clients.")).

52. *See* Melissa H. Weresh, *The Chicken or the Egg? Public Service Orientation and Lawyer Well-Being*, 36 U. ARK. LITTLE ROCK L. REV. 463, 475–76 (2014) (quoting MAGALI SARFETTI LARSON, *THE RISE OF PROFESSIONALISM: A SOCIOLOGICAL ANALYSIS*, at x (1977)).

53. *Preamble*, *supra* note 7, at para. 6.

54. *Id.*; Wald, *supra* note 51, at 423 (asserting that "[i]n the wake of lingering gender and racial injustice concerns highlighted by the #MeToo and BLM movements," the Model Rules of Professional Conduct "must simply do more than assert that lawyers are 'public

To act in the role of public citizen requires courage and a duty to uphold the rule of law. In his May 20, 2007, commencement speech at the University of Akron, Michael S. Greco, a former ABA President, highlighted this point stating:

Public service is the defining and proud calling of our profession As leaders in your profession and in your communities, you will have opportunities to stand up to injustices, and to defend the civil liberties and freedoms that the Constitution guarantees to all of us. Do not turn your back on those opportunities, even if they place you in the center of controversy. Embrace them. The American people look to lawyers to protect their freedoms. If you do not protect their rights, who will? The role of the lawyer has never been more important than it is today. *You* must be the champions of individual rights, the protectors of our Constitution, the defenders of justice and freedom, the trustees of our justice system. Never forget that.⁵⁵

These should be more than motivating words; they should be seen as values essential to the profession, essential to what a lawyer is and should be.

The Preamble emphasizes the importance of a self-governing profession to the rule of law and provides, “[a]n independent legal profession is an important force in preserving government under law, for abuse of legal authority is more readily challenged by a profession whose members are not dependent on government for the right to practice.”⁵⁶ This underscores the privilege lawyers have to be free from the external pressures that might threaten the rule of law and make us less likely to act to remedy injustice. It also underscores the role of the lawyer to serve as an officer of the legal system as set forth in the Preamble. In this role, “[a] lawyer should use the law’s procedures only for legitimate purposes[,] . . . demonstrate respect for the legal system and for those who serve it[,] . . . [and, even when there is a need to challenge the law,] to uphold legal process.”⁵⁷ This serves to remind lawyers that they do not have a singular duty to zealously represent their clients at all costs and at the expense of the justice system and rule of law. Rather, this duty “serves as a constraint on over-commitment to [] the client, which may

citizens with a special responsibility for the quality of justice,’ without spelling out in detail the content and meaning of such a responsibility.” (internal citations omitted)).

55. Michael S. Greco, *University of Akron School of Law Commencement Address*, 41 AKRON L. REV. 337, 345 (2008).

56. *Preamble*, *supra* note 7, at para. 11.

57. *Id.* at para. 5.58. PATRICK EMERY LONGAN, DAISY HURST FLOYD, & TIMOTHY W. FLOYD, *THE FORMATION OF PROFESSIONAL IDENTITY: THE PATH FROM STUDENT TO LAWYER* 78 (West Academic 2d. ed. 2024).

lead the lawyer into situations where failure to follow the law seems like the good, or even the only, way to act.”⁵⁸

Law schools must do a better job educating students about the lawyer’s role as an officer of the court and a public citizen. Like the Preamble, what we end up communicating is that the role of zealous advocate trumps all else.⁵⁹ It is not enough for the Preamble to set forth these roles if what and how we are teaching does not communicate that these roles are foundational to the functioning of our democracy.

2. Reframing the Role of “Zealous Advocate”

As set forth in the Preamble, the three roles of a lawyer are listed in the conjunctive, suggesting that they have equal weight.⁶⁰ But, the lawyer’s role as a representative of clients is listed first, and it is followed in the very next paragraph by a description of the lawyer’s advocacy role as one in which “a lawyer zealously asserts the client’s position under the rules of the adversary system.”⁶¹ When taken together, these paragraphs can be read to suggest that the role of serving clients is the most important role and that, by representing clients well, a lawyer’s other roles are satisfied. The Preamble even assumes that if the “opposing party is well represented, a lawyer can be a zealous advocate on behalf of a client and at the same time assume that justice is being done.”⁶² This

58. PATRICK EMERY LONGAN, DAISY HURST FLOYD, & TIMOTHY W. FLOYD, *THE FORMATION OF PROFESSIONAL IDENTITY: THE PATH FROM STUDENT TO LAWYER* 78 (West Academic 2d. ed. 2024).

59. The Kutak Commission, which worked to formulate the Model Rules of Professional Conduct after Watergate, saw the “concept that lawyers have obligations relating to greater social interest in addition to the singular allegiance a lawyer traditionally owed to the client” as controversial. *The Kutak Commission*, KUTAK ROCK, <https://www.kutakrock.com/general-content/the-kutak-commission> [<https://perma.cc/9JHB-CLBP>] (last visited Mar. 29, 2024). When the Model Rules were adopted, “they emphasized the lawyer’s duties to a client and soft-pedaled other duties.” Michael Ariens, *Brougham’s Ghost*, 35 N. Ill. U. L. REV. 263, 313 (2015). In addition, “the Kutak Commission declared, ‘The prevailing notion among lawyers seems to be that the lawyer’s duty of loyalty to the client is the first, the foremost, and, on occasion, the only duty of the lawyer.’” *Id.* at 314 (quoting L. Ray Patterson, *Legal Ethics and the Lawyer’s Duty of Loyalty*, 29 EMORY L.J. 909, 918 (1980)).

60. Meany, *supra* note 51, at 120.

61. *Preamble*, *supra* note 7, at para. 2; Meany, *supra* note 51, at 130 (“‘Zealous advocate’ is mentioned first in the Rules, it is defined and explained first, and it is discussed more frequently than the ‘public citizen’ role.” (internal citations omitted)).

62. *Preamble*, *supra* note 7, at para. 8; Meany, *supra* note 51, at 131 (“For society, the adoption of ‘zealous advocate’ as the default in the Rules could have a devastating impact on the preservation and promotion of justice. Each time the duties of ‘zealous advocate’ and ‘public citizen’ conflict, a lawyer will presumptively gravitate towards loyalty to the client.” (internal citation omitted)); Kim, *supra* note 12, at 830 (“The prevailing view of the lawyer’s role understands lawyers to be fiduciaries *only* of their clients. Hence, the lawyer’s

is a dubious assumption⁶³ and one that focuses on client representation first and a lawyer's role as public citizen second. The Preamble also suggests that if a lawyer faces a conflict, the lawyer should consider the "lawyer's obligation zealously to protect and pursue a client's legitimate interests, within the bounds of the law, while maintaining a professional, courteous and civil attitude toward all persons involved in the legal system."⁶⁴

Professor Matthew Meany asserts that "the Rules themselves predispose practitioners to embrace the role of 'zealous advocate' at the expense of 'public citizen.'"⁶⁵ Meany posits that the Preamble's focus on the lawyer as "zealous advocate" means that "an attorney must violate one of her duties under the Rules when a client's objectives are not aligned with public justice" and it fails to adequately define the role of public citizen.⁶⁶ Further, he suggests the use of the word "zealous" results in a "willingness to employ any means necessary to achieve stated ends and to reject a thorough inquiry into the legitimacy or various costs of those means."⁶⁷ In other words, the Preamble itself pits the role of lawyer as the "hired gun" against the role of the lawyer as "constitutional patriot."⁶⁸ If we focus on the lawyer as public citizen to uphold the rule of

principal, if not sole, obligation is to pursue her client's objectives, within the bounds of the law, without having to consider the impact on third parties, including those directly affected by the lawyer's representation of the client, or even the system-at-large.").

63. The reality is that many people have no access to legal representation. Many states have a deficit of lawyers, especially in rural areas. ABA PROFILE OF THE LEGAL PROF. REP. 2 (2020) ("Overall, 40% of all counties and county-equivalents in the United States—1,272 of 3,141—have less than one lawyer per 1,000 residents."), <https://www.americanbar.org/content/dam/aba/administrative/news/2020/07/potlp2020.pdf> [<https://perma.cc/XDU9-WZG3>]; see generally Lisa R. Pruitt et al., *Legal Deserts: A Multi-State Perspective on Rural Access to Justice*, 13 HARV. L. & POL'Y REV. 15 (2018).

64. *Preamble*, *supra* note 7, at para. 9.

65. Meany, *supra* note 51, at 120; Eli Wald asserts that

the ABA Model Rules of Professional Conduct have what he calls a "hired gun bias" and that they should be refocused to emphasize the role of lawyers as officers of the legal system and public citizens, going so far as to suggest that the preamble to the Model Rules should be rewritten as follows: "A lawyer is a public citizen, an officer of the legal system and a representative of clients."

David I. C. Thomson, "Teaching" Formation of Professional Identity, 27 REGENT UNIV. L. REV. 303, 313 (2015) (quoting Eli Wald, *Resizing the Rules of Professional Conduct*, 27 GEO. J. LEGAL ETHICS 227, 266 (2014)). Further, Professor Wald argues that the Model Rules ought to be rewritten to reflect the commitment of the Model Rules to form lawyers whose professional identity is more complex than mere servants of client interests. Wald, *supra* note 51, at 396–97.

66. Meany, *supra* note 51, at 122, 127.

67. *Id.* at 126.

68. These terms were used in juxtaposition by Jamie Ben Raskin (U.S. House of Representatives) AALS Annual Meeting, Section on Leadership—Defending Democracy

law, perhaps the focus of some lawyers on representation of clients no matter the personal or moral cost would not take primacy.

Meany also asserts that “in its current design, legal education provides abundant reinforcement of zealous advocacy . . . [while at the same time] fail[ing] to provide meaningful instruction regarding a lawyer’s ‘public citizen’ duties and the skills needed to work through the moral and ethical conflicts that they will inevitably face”⁶⁹ In making this assertion, Meany points to the 2007 Carnegie Report’s observation that “[i]n their all-consuming first year, students are told to set aside their desire for justice. They are warned not to let their moral concerns or compassion for the people in the cases they discuss cloud their legal analyses.”⁷⁰ This setting aside of a focus on justice and moral concerns further emphasizes the role of lawyer as a client representative and zealous advocate over the role of public citizen.⁷¹ This approach often continues in doctrinal classrooms throughout law school, including Professional Responsibility classes, where the focus of the course is on the Model Rules of Professional Conduct and the role of zealous advocacy as described above.

Professors Eli Wald and Russell Pearce note that law schools are not immune from the focus on zealous advocacy to the exclusion of the public citizen role.⁷² This has resulted in law students taking on the ultimate professional identity of “autonomously self-interested lawyers.”⁷³ Wald and Pearce explain that this identity is one that “views clients as individualistic and atomistic entities whose goal is to pursue and maximize their self-interest aggressively without regard to others . . . and denies the existence of any duties owed by clients or lawyers to the

through Effective Leadership Education (recording available through AALS), https://memberaccess.aals.org/eweb/DynamicPage.aspx?WebKey=5184F1A4-2369-44E5-B712-00E14F5DE5DB&Reg_evt_key=c39e87c4-cbb0-4c97-ae56-812b065359be [<https://perma.cc/D5UC-GYV6>] (“ . . . law schools do play an essential role in defending and promoting democracy through effective leadership. We need to be graduating people who are constitutional patriots, not just hired guns.”).

69. Meany, *supra* note 51, at 134.

70. *Id.* at 134–35 (quoting SULLIVAN, *supra* note 8, at 6).

71. *Id.* at 135.

72. Eli Wald & Russell G. Pearce, *Making Good Lawyers*, 9 U. ST. THOMAS L. J. 403 (2012).

73. *Id.* at 405 (“Such attorneys understand their professional role to be the aggressive pursuit of their clients’ interests with little regard to the interests of others, the law itself, or the public; perceive their role as a representative of clients to dominate and supersede their roles as an officer of the legal system and as a public citizen; and believe that their duties to the public interest and to public service are fulfilled by their representation of private client interests such that they have no other responsibility to further the rule of law and access to justice.”).

public interest.”⁷⁴ By refocusing legal education on the role of lawyer as public citizen, law schools can move away from this notion of lawyering to an intentional exploration of a lawyer’s individual and relational⁷⁵ professional identity.

B. The Oath Taken Upon Admission to the Bar

In addition to the lawyer’s role as “public citizen” stated in the Preamble, a lawyer’s responsibility to uphold the rule of law is set forth in the oath every lawyer in the United States must take to become a licensed member of the profession. “Each state’s oath varies in its wording, but they all require . . . the same three duties: to support the Constitution of the United States, to faithfully discharge the duties of an attorney, and to conduct oneself with integrity and civility.”⁷⁶

For example, to be admitted to practice law in Georgia, applicants must take the Attorney’s Oath as follows:

I, _____, swear that I will truly and honestly, justly and uprightly conduct myself as a member of this learned profession and in accordance with the Georgia Rules of Professional Conduct, as an attorney and counselor, and that I will support and defend the Constitution of the United States and the Constitution of the State of Georgia. So help me God.⁷⁷

The same is true for law students who want to gain limited admittance under the Georgia Student Practice Rule. Students must aver the following:

74. *Id.* at 411.

75. *Id.* (“Relationally self-interested professionalism understands clients as attempting to pursue and maximize their self-interest in relation to others, conducting themselves pursuant to the principles of mutual benefit and mutual respect. It understands lawyers’ role, in turn, as facilitators of such relational goals, whose spirit of public service manifests itself in a duty to act as civics teachers educating and advising clients to act relationally and in a commitment to enhance access to legal services.”).

76. Robert Anthony Gottfried, *The Anatomy of Our Oath*, AM. BAR ASS’N (Jan. 8, 2021), https://www.americanbar.org/groups/young_lawyers/resources/after-the-bar/professional-development/anatomy-of-our-oath/ [https://perma.cc/4BVV-3W2F].

77. *Order*, SUP. CT. OF GA. (Apr. 22, 2022) (“The order entered by this Court on April 8, 2002, amending the Rules Governing Admission to the Practice of Law is hereby vacated. It is further ordered that the Attorney’s Oath, found in the Rules Governing Admission to the Practice of Law, Part B, Section 16 [be amended to include the aforementioned oath.]”), <https://www.gasupreme.us/rules/amendments-to-rules/attorney-oath/> [https://perma.cc/M2BQ-RJZE].

(a) 'I will support the Constitution of the United States and the Constitution of the State of Georgia.'

(b) 'I will maintain the respect due to courts of justice and judicial officers.'

(c) 'I will employ such means only as are consistent with truth and honor, and will never seek to mislead by any artifice or false statement of fact or law.'

(d) 'I will maintain and protect all confidences entrusted to me.'

(e) 'I will in all other respects conduct myself personally and professionally in conformity with the high standards of conduct imposed upon members of the State Bar of Georgia.'⁷⁸

What is interesting, and may not be intentional, is that the attorney oath puts the promise to uphold the Constitution last while the student practice rule oath puts that same promise first—seemingly prioritizing the notion that this is a profession that is called to serve the public good. In addition, the student practice rule oath much more explicitly focuses on the role of lawyer as an officer of the legal system. To that end, it is important that students learn that the role of public citizen and the responsibility to uphold the rule of law apply to all lawyers in any field. These roles are not relegated only to lawyers who serve the public good by virtue of the population they represent (government lawyers or public interest lawyers).

V. DEFINING THE RULE OF LAW

*"When we [Americans] talk about the rule of law, we assume that we're talking about a law that promotes freedom, that promotes justice, that promotes equality."*⁷⁹

The term "rule of law" is a frequently used term that is rarely defined.⁸⁰ Yet if law students are to readily understand the lawyer's role as a public citizen, we need to use a definition that will help them to readily understand and apply what "rule of law" means. Accordingly, the World Justice Project has worked to develop "a broadly accepted definition of

78. *Rule 94(3)(a-e). Procedure for Registration*, GA BAR ADMISSIONS, [https://www.gabaradmissions.org/studpracrule#:~:text=Rule%2094.&text=\(3\)%20an%20oath%20signed%20by,of%20justice%20and%20judicial%20officers.%E2%80%9D](https://www.gabaradmissions.org/studpracrule#:~:text=Rule%2094.&text=(3)%20an%20oath%20signed%20by,of%20justice%20and%20judicial%20officers.%E2%80%9D) [https://perma.cc/JW9M-DWKY] (last visited March 24, 2024).

79. *What is the rule of law?*, *supra* note 34 (quoting US. Supreme Court Justice Anthony Kennedy, *Interview with ABA President William Neukom* (2007)).

80. *Id.*

the rule of law that could be used to measure adherence to the rule of law both in the United States and abroad.”⁸¹ That definition is: “The rule of law is a durable system of laws, institutions, norms, and community commitment that delivers four universal principles: accountability, just law, open government, and accessible and impartial justice.”⁸² These principles are defined as:

Accountability[—]The government as well as private actors are accountable under the law.

Just Law[—]The law is clear, publicized, and stable and is applied evenly. It ensures human and procedural rights as well as property and contract rights.

Open Government[—]The processes by which the law is adopted, administered, adjudicated, and enforced are accessible, fair, and efficient.

Accessible and Impartial Justice[—]Justice is delivered timely by competent, ethical, and independent representatives and neutrals who are accessible, have adequate resources, and reflect the makeup of the communities they serve.⁸³

Others have offered definitions that pick up on the general principles highlighted by the World Justice Project.⁸⁴ Looking at the historical

81. *Id.*; see also *U.S. Lawyers Are Called to Defend Democracy and the Rule of Law*, WORLD JUST. PROJECT (Aug. 10, 2023), https://worldjusticeproject.org/news/us-lawyers-define-rule-of-law?gad_source=1&gclid=Cj0KCQjw8J6wBhDXARIsAPo7QA-YRaz4noF2N3XedWQ7uwVsumM3nX9Sz-AYqdB3Zep2ZD-QtrS0r57caAqggEALw_wcB [<https://perma.cc/933Q-P66L>]; *U.S. Rule of Law Toolkit*, *supra* note 33.

82. *Id.*; see Robert A. Stein, *What Exactly Is the Rule of Law?*, 57 HOUS. L. REV. 185, 185 (2019) (“This continued definitional quest is important, because to the extent we can more clearly identify the principles of the rule of law, we can more effectively support the legal and political reforms that will advance it.”).

83. *U.S. Rule of Law Toolkit*, *supra* note 33.

84. See *Overview—Rule of Law*, U.S. COURTS, <https://www.uscourts.gov/educational-resources/educational-activities/overview-rule-law#:~:text=Rule%20of%20law%20is%20a,Independently%20adjudicated> [<https://perma.cc/X3MZ-VCLR>] (last visited Mar. 24, 2024). The U.S. Courts define rule of law as “a principle under which all persons, institutions, and entities are accountable to laws that are: Publicly promulgated; Equally enforced; Independently adjudicated; And consistent with international human rights principles.” *Id.*; see also *Rule of Law Task Force*, NY CITY BAR ASS’N (defining rule of law as “the framework for decision-making in a constitutional democracy that encompasses, among other things, due process of law, adherence to separation of powers and a system of checks and balances, the protection of fundamental rights, and the fair and equal administration of justice by an independent judiciary.”), <https://www.nycbar.org/committees/task-force-on-the-rule-of-law/> [<https://perma.cc/N5BL-YEMR>] (last visited Mar. 24, 2024).

definitions of rule of law along with the World Justice Project definition, Professor Robert A. Stein proffered the following definition that focuses on eight principles consistent with a comprehensive definition of the rule of law:

1. Superiority of the Law[:] The law must be superior. All persons are subject to the law whatever their station in life.
2. Separation of Powers[:] There must be a separation of powers in the government. The lawmakers should enact the law in general terms. The lawmakers should not be the body that decides on the application of the law to specific situations. The executive applies the law to specific situations. The judicial branch rules on disputes regarding the application of the law to specific situations.
3. Known and Predictable[:] The law must be known and predictable so that persons will know the consequences of their actions. The law must be sufficiently defined and government discretion sufficiently limited to ensure the law is applied in a nonarbitrary manner.
4. Equal Application[:] The law must be applied equally to all persons in like circumstances.
5. Just Laws[:] The law must be just and must protect the fundamental human rights of all persons in society.
6. Robust and Accessible Enforcement[:] Legal processes must be sufficiently robust and accessible to ensure the enforcement of the just laws and human rights protections.
7. Independent Judiciary[:] Judicial power enforcing those just laws and human rights protections must be exercised independently of either the executive or legislative bodies, and individual judges must base their decisions solely on the laws and the facts of individual cases.
8. Right to Participate[:] Members of society must have the right to participate in the creation and refinement of laws that regulate their behavior.⁸⁵

Stein's definition adds four additional principles to the World Justice Project definition that can give law students a tangible idea of what the

85. Stein, *supra* note 82, at 192–97 (“This Article contributes to the ongoing discourse by setting forth eight principles that form the central tenets of the rule of law. This Article also identifies five additional principles that might be added to the list of principles defining the rule of law.”). Stein offers additional principles that may be added. *Id.* at 198–201. I do not think those additional principles are necessary.

rule of law means and how it relates to the lawyer's role as a public citizen.

Another way of defining rule of law focuses on its purpose. Professor Sung Hui Kim contends that "the substantive value that lies at the heart of the rule of law is the *restraint of the arbitrary exercise of power*."⁸⁶ Focusing on this fundamental purpose can help us to better understand a lawyer's duty to uphold the law. Kim asserts:

[t]here are two constituent obligations or elements of the lawyer's duty to uphold the rule of law. The first element obliges lawyers to express fidelity to the law, which translates into a *prima facie* obligation to respect the positive laws. The second element obliges lawyers to express fidelity to the *telos* of the rule of law, which obliges lawyers (i) to accord greater respect to those laws that restrain the arbitrary exercise of power, (ii) to resist laws that reinscribe or exacerbate the arbitrary exercise of power, and (iii) to refrain from being complicit in the arbitrary exercise of power, even where there is no formal violation of law.⁸⁷

Whether we focus primarily on the principles that inform the rule of law or on the purpose for the rule of law, we need to provide students with a concrete idea of what the rule of law is and what it means to their role as public citizens.

VI. OTHER STEPS THAT LAW SCHOOLS CAN TAKE

Just as the legal profession has work to do in safeguarding democracy by advancing the rule of law, so too do law schools. Entrusted with training future members of the profession, law schools must provide students with the tools to understand their role as public citizens in upholding the rule of law, correcting injustice, and facilitating access to justice.

A. Make the Role of Lawyer as a Public Citizen Foundational

As discussed above, ABA Standard 303(b)(3) requires law schools to provide students with substantial opportunities to develop a professional identity. Accordingly, law schools must facilitate a student's integration of their personal identities with their emerging professional identity through the intentional exploration of the "values, guiding principles, and well-being practices considered foundational to successful legal

86. Kim, *supra* note 12, at 787 (emphasis in original).

87. *Id.* at 813.

practice.”⁸⁸ “[L]egal education demands a spirit of moral activism in law teaching that celebrates the calling of public citizenship upon the lawyering vocation.”⁸⁹ Accordingly, law schools should introduce the role of public citizen as foundational to the profession—that “lawyering is done as a ‘common calling’—we do it in common, and we are ‘called’ to work in ‘the spirit of public service.’”⁹⁰ To further that idea, law schools can frame professional identity as “one’s own decisions about professional behaviors [that require discretion regarding application of the ethical rules], as well as a sense of duty as an officer of the legal system and responsibility as part of a system in our society that is engaged in preserving, maintaining, and upholding the rule of law.”⁹¹ Indeed, the emphasis on law as a profession in service to the public can also have the effect of improving the well-being of students and those in the profession more generally.⁹²

Asserting the role of public citizen as foundational requires intentionality, which includes an acknowledgment and departure from the default “hidden curriculum” of legal education.⁹³ Instead of students gleaned lessons about what it means to be a lawyer from what is unstated and implied through the teaching methods we use, the courses we require, and how we define successful law practice, students should be presented with a clear picture of what the values and guiding principles of the legal profession are and how they relate to their own values and sense of justice.⁹⁴ Because students are forming their future

88. STANDARDS AND RULES OF PROC. FOR APPROVAL OF L. SCH., *supra* note 9, at 303(b)(3).

89. Etienne C. Toussaint, *The Miseducation of Public Citizens*, 29 GEO. J. ON POVERTY L. & POL’Y 287, 315 (2022).

90. Thomson, *supra* note 65, at 306.

91. *Id.* at 315.

92. Weresh, *supra* note 52, at 475.

93. Timothy W. Floyd & Kendall L. Kerew, *Marking the Path from Student to Lawyer: Using Field Placement Courses to Facilitate the Deliberate Exploration of Professional Identity and Purpose*, 68 MERCER L. REV. 767, 768, n.3 (2017), https://digitalcommons.law.mercer.edu/jour_mlr/vol68/iss3/11/ [<https://perma.cc/2BNN-Z5ED>]; Emily Hughes, *Taking First-Year Students to Court: Disorienting Moments As Catalysts for Change*, 28 WASH. U. J. L. & POL’Y 11, 14 (2008) (“Even when we do not teach normative values to our students consciously, every day, in every class, we convey normative values to our students. Whether or not we make them explicit, we convey normative values through the readings we select, the questions we ask, the questions we do not ask, the way we approach the material, and the way we test the material.”).

94. See Roger C. Cramton, *The Ordinary Religion of the Law School Classroom*, 29 J. L. EDUC. 247 (1978). A challenge to this notion of intentionality is that

how law professors conceptualize the relationship between the law, lawyering, and public citizenship is varied. [And] reflects, more fundamentally, a lack of consensus on the demands of public citizenship upon legal education due to the

professional identities from the beginning of law school,⁹⁵ what we do in the first year has particular importance to their ability to integrate their personal and professional identities.

The prevailing way we teach in first-year doctrinal classrooms and the focus on “thinking like a lawyer” are disorienting at best and destructive at worst.⁹⁶ Students are told explicitly or implicitly through the examination of mostly appellate cases using the Socratic method that law is value neutral and that a justice-oriented approach does not fit with learning how to analyze the law.⁹⁷ These instructional methods teach students how to “think like a particular kind of lawyer, one that brackets or entirely dismisses differences in culture, or social context. Or rather, one that recognizes contextual differences matter only insofar as they ‘fit into legal categories decreed by precedential tests or statutory requirements.’”⁹⁸ This lens of “autonomous self-interest”⁹⁹ presents as an immutable truth that the law is value neutral and works toward justice

lack of consensus on the more general implications of public citizenship for the legal profession.

Toussaint, *supra* note 89, at 308.

95. Presumably, this is why ABA Standard 303(c) requires law schools to provide training on cross-cultural competence, racism, and bias at the beginning of the program of legal education. See STANDARDS AND RULES OF PROC. FOR APPROVAL OF L. SCH., *supra* note 9, at 303(c).

96. Bennett Capers, *The Law School as a White Space*, 106 MINN. L. REV. 7 (2021). The “classroom habits” that students form can “be intellectually violent to students differentiated by class, race, gender, and sexuality who find their lived experiences in contraction to case law, but the habits themselves can become intellectually violent to *all* law students because they convey lawyering as merely a pathway toward meeting client objectives.” Toussaint, *supra* note 89, at 311–12.

97. Toussaint, *supra* note 89, at 311 (“Issues such as the social needs or matters of justice involved in cases do get attention in some case-dialogue classrooms, but these issues are almost always treated as addenda In their all-consuming first year, students are . . . warned not to let their moral concerns or compassion for the people in the cases they discuss cloud their legal analyses.” (quoting SULLIVAN ET AL., *supra* note 8, at 6)).

98. Capers, *supra* note 96, at 36. Capers found that law schools train students to focus on form, authority, and legal-linguistic context, and to discount and even devalue morality, content, and social context. *Id.* at 36–37; see also Toussaint, *supra* note 89, at 292 (“The traditional emphasis on teaching legal rules through appellate court opinions can undermine the importance of social and political context to legal analysis. Perhaps more importantly, the objective, apolitical, and so-called ‘colorblind’ jurisprudential stance can harm law students who discover a legal doctrine in conflict with their own lived experiences yet often feel silenced in the classroom and unprepared to ask the most urgent question for any rule of law: why?”).

99. Wald & Pearce, *supra* note 72, at 421. Students can choose on an informed basis the kind of lawyers they wish to become and the kind of professional values they wish to adopt. See Jane H. Aiken, *Beyond the Disorienting Moment*, 26 CLINICAL L. REV. 37, 51 (“Incivility is modeled every day. We have now created social media and news sources that are built around our own interests and our own individual vision of the world.”).

on all occasions. It also leads to students focusing on the role of zealous advocate to the exclusion of or making secondary the role of public citizen.¹⁰⁰

Students are led to believe that there is a one-size-fits-all professional identity that they must assume as they transition between their personal and their professional lives. In addition, students internalize and believe that their views of justice and their cultural and moral values are not relevant or part of how law functions. Professional identity should not be reduced to a singular identity devoid of the exercise of personal morals or identity.¹⁰¹ This is destructive not only to the development of a student's professional identity, but also to their personal identity. Being led to believe there is one homogenous ideal of what a lawyer should be communicates to students that what they think, what they believe, and who they are does not matter to the practice of law or the administration of justice.¹⁰²

Professor Jane Aiken asserts that:

[l]earning should be placed in a social justice context, where students can glimpse the close relationship between knowledge, culture, and power Students should be exposed to the ways in which legal power is distributed and exercised in American society, to what ends, and in whose interests. Ultimately, the goal should be to imbue students with a lifelong desire to learn about justice, identify injustice, recognize when they [or others] are perpetuating injustice, and work toward a legal solution.¹⁰³

While each student must ultimately determine what they will incorporate into their professional identity as a lawyer, this exposure coupled with self-reflection can lead to a better understanding of their role as a public citizen.¹⁰⁴ This reframing and focus on their role as public

100. See SULLIVAN ET AL., *supra* note 8; Wald & Pearce, *supra* note 72.

101. See Capers, *supra* note 96, at 36.

102. Toussaint, *supra* note 89, at 311 ("When law professors condition law students—both White and non-White students alike—to set aside their personal moral views in their legal analysis, classroom habits eventually become standard practice after graduation.").

103. Jane Aiken, *The Clinical Mission of Justice Readiness*, 32 B.C. J.L. & SOC. JUST. 231, 237 (2012). Although Professor Aiken talks about this focus in the context of clinical education, it can be extrapolated and applied to doctrinal courses as well. See Amanda Levendowski, *Teaching Doctrine for Justice Readiness*, 29 CLINICAL L. REV. 111 (2022); see generally Kimberly Mutcherson, *The Color Line: Democracy, Race, and the January 6th Insurrection* in BEYOND IMAGINATION 163, 165 ("Our law schools must be spaces in which we confront tough realities, produce critical thinkers, and inculcate a respect for what law has done, good and bad, and what it can be made to do if we care enough.").

104. Aiken, *supra* note 103, at 239. In addition, professors can incorporate some of the teaching ideas outlined by Professor Paula Schaefer in her blog post, *Jumpstart Outline:*

citizen is of particular importance when law school classes are more diverse than they have ever been. Incoming students are increasingly female and people of color, two demographics that were excluded from the design of the traditional law school and have not historically had equal rights or equal justice under the law.¹⁰⁵

Professor Mae Quinn teaches criminal law through a public citizen lens by exposing students to areas of criminal law in need of reform.¹⁰⁶ She does this through “lectures, breakout groups, presentations, handouts, jury instructions, courthouse visits, films, skits, and songs[.]” with the goal of helping students to see “the law in action—outside the confines of their text book—and recognize various flaws in the system.”¹⁰⁷ She finds that teaching the public citizen aspect of lawyering particularly resonated with those who “historically have been left out of the legal profession and academy . . . [W]omen and students of color.”¹⁰⁸

In their required first-year course on professional identity entitled, “The Legal Profession,”¹⁰⁹ Professors Pat Longan, Daisy Floyd and Tim Floyd “examine professional identity through the lens of virtue ethics, a branch of moral philosophy.”¹¹⁰ They explain that “[t]o apply virtue ethics

Ideas to Help You Make a Plan to Teach “Public Citizen” Lawyering in Any Law School Class, Best Practices Blog (Dec. 28, 2017), <https://bestpracticeslegaled.com/2017/12/28/jumpstart-outline-ideas-to-help-you-make-a-plan-to-teach-public-citizen-lawyering-in-any-law-school-class/> [<https://perma.cc/824D-NVL9>].

105. According to the Law School Admission Council’s analysis,

40.2% of the class are students of color, up from 39.0% in last year’s entering class, which was at the time an all-time record. Women make up 55.8% of the entering class, the highest percentage in history. In addition, 14.7% of the class is LGBTQ+, and 24.2% of the class are first generation college [graduates], both also the highest percentages ever.

James Leipold, *Incoming Class of 2023 Is the Most Diverse Ever, But More Work Remains*, LSAC.ORG (Dec. 15, 2023), <https://www.lsac.org/blog/incoming-class-2023-most-diverse-ever-more-work-remains#:~:text=Black%2FAfrican%20American%20students%20comprise,compared%20to%208.8%25%20in%202021> [<https://perma.cc/5BH4-Z6QB>]. “[I]n 2022, one-third of all students pursuing a juris doctor degree (33%) were students of color Among all law students in 2022, 13.7% were Hispanic, 7.8% Black, 7% Asian American, 4% mixed race and 0.4% Native American. An additional 6.4% were classified as race unknown.” *Profile of the Legal Profession*, AM. BAR ASS’N (2023), <https://www.americanbar.org/content/dam/aba/administrative/news/2023/potlp-2023.pdf> [<https://perma.cc/YM5P-Y7RS>]. In addition, 55.7% of law students in 2022 were women. *Id.*

106. Mae C. Quinn, *Teaching Public Citizen Lawyering From Aspiration to Inspiration*, 8 SEATTLE J. FOR SOC. JUST. 661, 670–71 (2010).

107. *Id.* at 671.

108. *Id.* at 675.

109. See *First Year Course on Professional Identity*, MERCER UNIV., <https://law.mercer.edu/faculty/centers-and-institutes/clep-education/> [<https://perma.cc/ZK6Y-UQMG>] (last visited Mar. 29, 2024).

110. LONGAN, FLOYD & FLOYD, *supra* note 58, at 3.

to the question of professional identity as a lawyer, we must identify the virtues that, if cultivated and deployed, will bring you closer to the ideal of a lawyer.”¹¹¹ These virtues include those that focus on the lawyer’s role as an officer of the justice system, which they call “fidelity to law,”¹¹² and the lawyer’s role as a public citizen, which they call “public spiritedness.”¹¹³ In discussing these virtues, they acknowledge the overlap between the two. For example, they are careful to explain:

fidelity to the law does not mean that you must accept unjust or unwise laws or judicial decisions. This freedom to challenge the status quo can at first seem to be at odds with a requirement to be faithful to the law. It is not—the ability of the lawyer to work within the law to change the law is part of the genius of our system. In fact, part of the virtue of public spiritedness . . . is to improve the law.¹¹⁴

In the upper-level experiential curriculum, Professor Kelly Terry has developed two classes as part of her externship seminar that provide students with an opportunity to explore the role of public citizen.¹¹⁵ The first class focuses on the roles of the lawyer through a speech given by late Attorney General and Senator Robert F. Kennedy.¹¹⁶ In the speech, Kennedy asserts that “[l]awyers have duties as citizens but they also have special duties as lawyers. Their obligations go far deeper than earning a living as specialists in corporation or tax law. They have a continuing responsibility to uphold the fundamental principles of justice from which the law cannot depart.”¹¹⁷ Professor Terry explains:

The Kennedy speech attempts to rebut the charges that lawyers have ‘lost our far-sighted vision’ and ‘are no longer steeped in the law’s great philosophies and lifted by its lofty purposes[.]’ Kennedy cites two ‘first principles’—lawyers’ duties of courage and citizenship—that he asserts refute the charges. He then provides examples of attorneys who exemplified these qualities, including Andrew Hamilton, John Adams, Clarence Darrow, and Harold Medina, among others.

111. *Id.* at 11.

112. *Id.* at 77.

113. *Id.* at 99–121.

114. *Id.* at 78–79.

115. Kelly S. Terry, *Externships: A Signature Pedagogy for the Apprenticeship of Professional Identity and Purpose*, 59 J. OF LEGAL EDUC. 240 (2009). These classes, although taught in an upper-level experiential course context, could be inserted into either a doctrinal class or a professional identity formation course in the first year.

116. Robert F. Kennedy, *Address by Attorney General Robert F. Kennedy at Dedication of Kendrick Hall*, U.S.F. L. SCH. (Sept. 29, 1962), <https://www.justice.gov/sites/default/files/ag/legacy/2011/01/20/09-29-1962Pro.pdf> [<https://perma.cc/NG2Y-LVGR>].

117. *Id.* at 5.

According to Kennedy, ‘All these attorneys rose above the interests of their pocketbooks. They were men who freely stepped across the boundary of their own legal specialty, often at the cost of their popularity.’

The Kennedy speech generally provokes a good discussion on the nature and scope of lawyers’ duties to seek justice and promote the public good. I ask students whether they have seen examples in their externships of the types of courage and citizenship that Kennedy discusses.¹¹⁸

In addition, Professor Terry assigns a short article about the lawyers representing Salim Hamdan in *Hamdan v. Rumsfeld*,¹¹⁹ to “provide examples of modern-day attorneys who demonstrated the virtues that Kennedy extolled.”¹²⁰ The class also includes a discussion of an excerpt from Professor Deborah Rhode’s article, *Law, Lawyers, and the Pursuit of Justice*, in which Professor Rhode asserts that lawyers must take moral considerations and the public good into account when representing clients.¹²¹

In a later class, Professor Terry explores different philosophies of lawyering as a means for considering the consequences of one’s work as a lawyer and forming one’s professional identity. Students read and discuss materials describing elements of the “neutral partisan”/“hired gun” philosophy, a “moral consultation” philosophy, and a “moral accountability” philosophy.¹²² After a discussion of the various philosophies, Professor Terry has the students apply each philosophy to the facts of the famous ethics case, *Spaulding v. Zimmerman*.¹²³ In *Spaulding*, attorneys for the defense had to decide whether to disclose a

118. Terry, *supra* note 115, at 257.

119. 548 U.S. 557 (2006).

120. Terry, *supra* note 115, at 257.

121. Deborah L. Rhode, *Keynote: Law, Lawyers, and the Pursuit of Justice*, 70 FORDHAM L. REV. 1543, 1546 (2002).

122. The materials assigned for this class are an excerpt from Ann Southworth & Catherine L. Fisk, THE LEGAL PROFESSION: ETHICS IN CONTEMPORARY PRACTICE (including Richard Wasserstrom, *Lawyers as Professionals: Some Moral Issues*, 5 HUMAN RIGHTS 1 (1975)); an excerpt from Monroe H. Freedman & Abbe Smith, UNDERSTANDING LAWYER’S ETHICS (5th ed., Carolina Acad. Press 2016), and an excerpt from Nathan M. Crystal, *Developing a Philosophy of Lawyering*, 14 NOTRE DAME J.L. ETHICS & PUB. POL’Y 75 (2000). Crystal defines a philosophy of lawyering as “the basic principles that a lawyer uses to deal with the discretionary decisions that the lawyer faces in the practice.” *Id.*

123. 116 N.W.2d 704 (Minn. 1962). To learn about the Spaulding case, students read an excerpt from Timothy W. Floyd & John Gallagher, *Legal Ethics, Narrative, and Professional Identity: The Story of David Spaulding*, 59 MERCER L. REV. 941 (2008), https://digitalcommons.law.mercer.edu/jour_mlr/vol59/iss3/5/ [<https://perma.cc/N2VV-LGQH>].

defense medical expert report that the plaintiff failed to request in discovery; the report revealed that the plaintiff suffered from a life-threatening medical condition that his own doctor had not diagnosed.¹²⁴ Applying the different lawyering philosophies to the facts of the *Spaulding* case makes clear to students that the work they perform as lawyers has far-reaching consequences beyond the singular interests of their individual client.¹²⁵

B. Provide Students with Civics Training and Exposure to Public Law

In order to fully appreciate the role of public citizen, our students must know what the rule of law is and how our legal system functions. Too often, students come into law school without a complete knowledge of the legal system, including a basic civics education,¹²⁶ a full understanding of the role of each branch of government and the separation of powers, how our courts function, or a functional definition of the rule of law.¹²⁷ Providing students with this foundational knowledge is also important to a student's ability to engage in the respectful exchange of ideas that may be in conflict with others.¹²⁸ Before civics courses were removed from the college curriculum, "students grappled with Socrates' argument that the rule of law cannot survive if people simply ignore laws they don't support . . . [and] learned to see disagreement as a necessary ingredient of both learning and of life."¹²⁹

Law schools can begin to address the limiting of civics education by filling the gaps before students even enter law school. For example, schools can partner with pipeline programs like the "Justice Benham Law Camp," which is a three-week summer program administered by the Gate City Bar Association in Atlanta to expose minority high school

124. *Spaulding*, 116 N.W.2d at 348.

125. This class follows another class in which students have explored the meaning of what it actually means to be a "zealous advocate," based on their reading of several articles. See Steve C. Briggs, *The Myth and the Mischief of Zealous Advocacy*, 34 COLO. LAW. 33 (2005); John Lande, *Getting Good Results for Clients by Building Good Working Relationships with "Opposing Counsel"*, 33 LA VERNE L. REV. 107 (2011).

126. ABA Midyear Meeting 2024–House of Delegates Resolution 604, AM. BAR ASS'N (urging Congress to pass legislation to establish a President's Award for Civic Engagement "to reward and recognize students in grades 5 through 12 . . ."), https://www.americanbar.org/news/reporter_resources/midyear-meeting-2024/house-of-delegates-resolutions/604/ [https://perma.cc/K24E-7YRZ] (last accessed Mar. 24, 2024).

127. See generally Anthony W. Cromwell, *Civic Anemia: Law Schools Should Give Boosters to Counter Its Effects*, in BEYOND IMAGINATION? 231 (West Acad. 2022).

128. Debra Satz & Dan Edelstein, *By Abandoning Civics, Colleges Helped Create the Culture Wars*, N.Y. TIMES (Sept. 3, 2023), <https://www.nytimes.com/2023/09/03/opinion/colleges-civics-core-curriculum-culture-wars.html> [https://perma.cc/7SAP-8VBB].

129. *Id.*

students to the field of law.¹³⁰ Program attendees are students who are already interested in becoming lawyers, and this early exposure to the rule of law and the role of the lawyer can help a future law student to understand what being a lawyer means. In addition to pipeline programs, law school “Street Law” programs set up as courses, pro bono opportunities, or student organizations allow law students to teach members of the community, including high school students, about the law, democracy, and the rule of law.¹³¹

Law schools can also add courses to orientation or the first-year curriculum that will provide incoming students with the foundation necessary to understand they are future members of a profession and will have a role as public citizens. These courses can provide students with both information that will increase their understanding of what they are learning in their other first year courses and facilitate academic success. One such program is the “Life of the Law” course at Vanderbilt Law School. The course is taught during the week of orientation and is described as

[a]n introduction to the study of law, designed to give students the knowledge and skills that will prepare them for their other first year courses. Topics covered will include a review of American history and civics, the place of law among methods of ordering behavior, an overview of the American legal system, legal methodologies, legal concepts, theoretical frameworks for law, and the role(s) of law students and lawyers.¹³²

130. *Justice Benham Law Camp*, GATE CITY BAR ASS'N, <https://gatecitybar.org/event/justice-benham-law-camp/> [<https://perma.cc/5VYK-GVCC>] (last visited Mar. 29, 2024). Justice Robert Benham was the first African-American Supreme Court Justice in Georgia. He was also the first African-American to serve as Chief Justice of the Georgia Supreme Court. *Portrait Unveiling of Former Chief Justice Robert Benham*, SUP. CT. OF GA., <https://www.gasupreme.us/03-20-2023-portrait-unveiling-of-former-chief-justice-robert-benham/> [<https://perma.cc/W57S-HHQQ>] (last visited Mar. 29, 2024).

131. See generally Street Law Inc., STREETLAW.ORG, <https://streetlaw.org> [<https://perma.cc/8HS4-5HUT>] (last visited Mar. 24, 2024); Seán G. Arthurs, *Street Law: Creating Tomorrow's Citizens Today*, 19 LEWIS & CLARK L. REV. 925 (2015).

132. *J.D. Curriculum*, VANDERBILT UNIV. L. SCH., <https://law.vanderbilt.edu/jd-program/curriculum/> [<https://perma.cc/PUG8-LBUQ>] (last visited Mar. 24, 2024); *Vanderbilt University Law School Orientation Materials*, VANDERBILT UNIV. L. SCH. (2023), <https://cdn.vanderbilt.edu/vu-sub/wp-content/uploads/sites/281/2024/03/04144929/J.D.-Orientation-Schedule-2023.pdf> [<https://perma.cc/3QEZ-FT7N>]; see also *Introduction to the Study of Law*, UNIV. ALA. SCH. OF L. (“This course will focus on preparing students for their upcoming law school experience. It will provide information on what to expect in law school, review the fundamentals of the legal system, introduce legal analysis skills, and preview various techniques, concepts, and strategies to assist your law school studies. This course includes instruction on bias, cross-cultural competency, and racism.”), <https://www>.

In addition to providing such a course, law schools should consider balancing the courses that are traditionally taught in the first-year curriculum with courses that are rule-of-law focused, such as legislation and regulation, legal process, or constitutional law.

In the upper-level curriculum, law schools could incorporate courses on election law, democracy, and the rule of law.¹³³ Schools also could consider experiential courses focused on the rule of law, such as Professor Ann L. Schiavone's legislative drafting course,¹³⁴ externships, the Democracy and Rule of Law Clinic at Harvard,¹³⁵ and the Safeguarding Democracy Project at UCLA Law.¹³⁶

Also, co-curriculars can expose students to the legislative process. For example, at Georgia State University, the Law Review publishes a legislation issue every year called the "Peach Sheets."¹³⁷

The purpose of each *Peach Sheet* is to document the legislative history of each bill covered and to produce an article that will be of lasting value to the legal community in interpreting the statute. Today, the

law.ua.edu/courseguide/courses/view/289 [https://perma.cc/TY4X-RXQC] (last visited March 29, 2024).

133. Duke Law's Democracy and the Rule of Law is a 2-credit seminar that provide[s] an overview of the normative and positive issues associated with modern democracies and their legal systems. Students will explore questions related to the debate over what are the fundamental components of democracy and the rule of law. These questions include: does democracy require elections? Do elections need to be free, fair and frequent? Are there unalienable rights, protecting personal and civic freedoms, that are essential for a democratic system of government? How does one define the rule of law? Is the rule of law a necessary condition for democracy?

516 *Democracy and the Rule of Law*, DUKE UNIV. SCH. OF L., <https://law.duke.edu/academics/course/516> [https://perma.cc/B658-VTHK] (last visited Mar. 24, 2024).

134. Ann L. Schiavone, *Writing the Law: Developing the 'Citizen Lawyer' Identity through Legislative, Statutory, and Rule Drafting Courses*, 55 DUQ. L. REV. 119, 128 (2017).

135. Through the Democracy and Rule of Law Clinic, students "participate in an externship with Protect Democracy, a nonpartisan nonprofit founded by former White House and Department of Justice attorneys and dedicated to preventing our democracy from declining into a more authoritarian form of government." *Democracy and the Rule of Law Clinic*, HARVARD L. SCH., <https://hls.harvard.edu/clinics/externship-clinics/democracy-and-the-rule-of-law-clinic> [https://perma.cc/L5LD-MRSC] (last visited Mar. 24, 2024).

136. *Safeguarding Democracy Project*, UCLA SCH. OF L. (promoting "research, collaboration, and advocacy aimed at ensuring continued free and fair elections in the United States, conducted in accordance with democratic norms and the rule of law."), <https://law.ucla.edu/academics/centers/safeguarding-democracy-project> [https://perma.cc/4ZJZ-32XC] (last visited Mar. 24, 2024).

137. *The Peach Sheets*, GA STATE U. L. REV., <https://gsulawreview.org/pages/144-the-peach-sheets> [https://perma.cc/C7S4-W6SV] (last visited Mar. 24, 2024).

Peach Sheets are considered an authority on legislative history in Georgia and are regularly cited in state judicial opinions.¹³⁸

C. Help Students to Recognize and Remedy Injustice

The role of public citizen does not end with upholding the rule of law; it requires more. As public citizens, lawyers should “seek improvement of the law, access to the legal system, the administration of justice and the quality of service rendered by the legal profession.”¹³⁹ Accordingly, law students should be taught “from their very first day of law school that lawyering requires an ongoing and deep critique of justice as a moral virtue in both the practice and rule of law[,]” and that students should “develop critical legal consciousness to identify when law upholds the principles of liberty and equality enshrined in the Constitution, and when the law does not and must be transformed.”¹⁴⁰

To effectuate this, Professor Etienne Toussaint proposes a “legal pedagogy of public citizenship” made up of four principles that can “help to ensure that law faculty not only prepare their students to uphold the moral demands of public citizenship embedded in the Model Rules, but also teach their students how to affirmatively challenge systems of social, racial, and economic injustice rooted in law.”¹⁴¹ The four principles are: (1) “*deconstructive framing*, which guides the law professor in teaching the lawyer’s ethical duty of candor[.]”¹⁴² (2) “*ethical reposturing*, which guides the law professor in teaching the lawyer’s ethical duty of competence and professional judgment[.]”¹⁴³ (3) “*reconstructive ordering*, which guides the law professor in teaching the lawyer’s ethical duty to improve the law[.]”¹⁴⁴ and (4) “*liberatory lawyering*, which guides the law professor in teaching the lawyer’s ethical duty to assist the client and others in gaining competence.”¹⁴⁵ In his article, *The Miseducation of Public Citizens*, Professor Toussaint describes each principle in detail and gives examples of how they can be applied in the law school classroom.¹⁴⁶

138. *Id.*; *The Peach Sheets*, 40 GA STATE U. L. REV. 1 (2024) (the Peach Sheets from the 2023 legislative session.).

139. *Preamble*, *supra* note 7.

140. Toussaint, *supra* note 89, at 335–36.

141. *Id.* at 316.

142. *Id.* at 315–16.

143. *Id.* at 316.

144. *Id.*

145. *Id.*

146. *Id.* at 316–35.

Some students come to law school with a very real understanding of what injustice means and have personally experienced the deprivation of rights. For others, injustice is an idea that they do not fully appreciate until they experience disorientation. Professor Jane Aiken states:

people feel disorientation when they experience something and find themselves surprised that it played out the way it did. Their schema about how the world worked was wrong and required rethinking and readjustment. More often than not, that original schema is the result of privilege, largely the privilege not to see or anticipate oppression and harms.¹⁴⁷

She further describes the disorienting moment as one that

is transformative, inviting us to create new habits of mind that require us to be aware of our privilege and frames. Such disorienting moments and the reflection that follows can enhance our ability to communicate across perceived difference. They also require us to be vigilant, to take our limitations seriously, to understand how our schemas may reinforce oppressive systems, and, perhaps most important of all, take responsibility for that.¹⁴⁸

Courtroom observation can be a learning opportunity that can create these disorienting moments so important to the learning about injustice.¹⁴⁹ Accordingly, some law schools incorporate court observation as part of the curriculum even in the first year.¹⁵⁰ In describing her experience incorporating courtroom observation into her criminal law class, Professor Emily Hughes asserts,

[n]ot only is it possible to take first-year students to court, but it might be critical to do so as early as possible within our students' law school careers: the experience can catalyze change in the dynamics and focus

147. Aiken, *supra* note 99, at 38.

148. *Id.* at 39.

149. Hughes, *supra* note 93, at 16–19.

150. See *Court Observation Program*, TOURO LAW (requiring court observation and debrief as part of the first-year requirements), <https://www.tourolaw.edu/abouttourolaw/events/9964> [<https://perma.cc/2NZH-67QX>]; Myra E. Berman, *Transforming the Traditional Law School Curriculum into Portals to Practice*, in EXPERIENTIAL EDUCATION IN THE LAW SCHOOL CURRICULUM 295 (Emily Grant et al., eds. 2018) (describing Touro's court observation program); see also *Center for Racial Justice and Criminal Justice Reform*, UNIV. OF ARK. LITTLE ROCK WILLIAM H. BOWEN SCH. OF L., <https://ualr.edu/law/center-for-racial-justice-and-criminal-justice-reform/> [<https://perma.cc/QP99-2TJR>] (last visited Mar. 24, 2024).

of in-class discussions, which in turn may help students develop a more nuanced framework within which to understand [the] law.¹⁵¹

Arguably the most effective way to provide students with practice identifying injustice and considering ways to remedy injustice (or at the very least to make better law) is through experiential learning courses, specifically clinics and externships. Clinics and externships are ideal places to focus on professional identity formation and the lawyer's role as public citizen because social justice lawyering is part of the fabric of these courses and because they often focus on access to justice issues. For example, Professor Mae Quinn has described how she used her clinic to focus on teaching public citizen lawyering.¹⁵² Specifically, she addressed with students "their responsibility to do more than competently represent their clients and conduct themselves professionally[.]" and that "lawyering best practices also involve seeking to improve the law and justice system where appropriate."¹⁵³ After discussing specific issues her students encountered during the semester, the

students brainstormed possible efforts that could be undertaken to press for reform beyond traditional litigation-based challenges in individual cases and then attempted to operationalize those efforts. One example of this involved the students, as a group, writing a letter to local law enforcement at the end of the semester expressing their concerns about ongoing treatment of youth during arrest processes and calling for reform.¹⁵⁴

As stated earlier in this article, Professor Jane Aiken believes that students best learn the law when being exposed to social justice contexts. Clinics are a perfect place for this learning to take place. She asserts that, in teaching students, "clinical faculty should construct learning experiences that permit the justice issues to unfold, and require students to identify injustice and to understand its structural causes to solve the clients' problems."¹⁵⁵

VII. CONCLUSION

Perhaps the biggest challenge to addressing the democracy crisis we are now facing is ourselves. As lawyers and legal educators, we must come together at a time of division. We must see the protection of

151. Hughes, *supra* note 93, at 18.

152. See Quinn, *supra* note 106.

153. *Id.* at 667.

154. *Id.*

155. Aiken, *supra* note 103, at 237.

democracy as non-negotiable. We must recognize that our duty as officers of the legal system and our role as public citizens is foundational. We cannot let zealous advocacy be our singular or even primary focus. If we can unite on these principles, legal education can change in a way that will strengthen democracy and the rule of law. But no one can do it alone. Without the rule of law, however imperfect, there is no democracy, there is no system of justice, and there is no role for lawyers. Meaningful change will happen only if we come together in a way that will preserve the profession itself.